

STANDARD TERMS AND CONDITIONS

All and any business is undertaken and goods accepted and stored and/or warehoused by RB & Son Transport (Cape) CC (hereinafter called "the Carrier") subject to the conditions hereinafter set out and each and every condition hereinafter set out shall be deemed to be a condition of any agreement between the Carrier and the users of its service.

1. Definitions

In these conditions, the following words shall bear the meanings assigned to them below:

- 1.1 **"the Carrier"** means RB and Son Transport (Cape) cc and includes the carrier's servants and agents and any person or persons carrying any goods forming the subject matter of this contract under and in terms of a subcontract with the carrier.
- 1.2 **"the Customer"** means the party reflected on the waybill document as the sender of the goods, whether action on his own behalf or in his capacity as agent or in any other capacity for a third party;
- 1.3 **"Dangerous goods"** includes those goods classified as such by Spoornet, the Marine Division of the Department of Transport, or goods which are considered by the carrier to be dangerous;
- 1.4 **"Day"** means the period of 24 consecutive hours from midnight to the next day.
- 1.5 **"Delivery"** means the conveyance of one load of the goods pursuant to this agreement in the dedicated vehicle from the loading point to the off-loading point.
- 1.6 **"Freight charges"** means the carrier's standard charges or such other consideration payable to the carrier by the customer in terms of this agreement.
- 1.7 **"the Goods"** means the goods forming the subject matter of this agreement, whether contained in one or more parcels or packages and whether consigned singularly or in parcels or in bulk;
- 1.8 **"The handling of the goods"** includes the goods being handled, warehoused, held, stored, controlled, loaded or unloaded, carried or otherwise possessed by the carrier for any purpose whatsoever.
- 1.9 **"Month"** means a calendar month.
- 1.10 **"Vehicle"** means any vehicle used by the carrier in connection with this agreement upon which or in which the goods and / or containers are conveyed.
- 1.11 **"Week"** means the period of seven consecutive days commencing on a Monday and expiring on the following Sunday.

2. No variation of Conditions

- 2.1 The handling of the goods shall be subject to the conditions stated herein unless specifically varied by the carrier in writing, and these conditions shall at all times take precedence over any terms, conditions or stipulations contained in any of the customer's documentation.
- 2.2 The Customer enters into a contract with the Carrier and certifies that the particulars on the face thereof are correct and request the carrier to receive and forward the mentioned cargo to said destination and to deliver it to the consignee in accordance with the conditions as set out hereunder.
 - 2.2.1 In the event that the Customer contracts as a principal, it shall be bound by the terms and conditions contained herein.
 - 2.2.2 In the event that the Customer contracts as an agent of the consignee, the Customer warrants that it is duly authorized to do so and that the terms and conditions set out herein are accepted by the consignee. Furthermore, the Customer hereby indemnifies the Carrier against any and all claims of whatsoever nature and howsoever arising instituted against the Carrier by the Consignee.
- 2.3 Should the customer in any way purport to attach any conditions which vary, amend or are in conflict with the conditions set forth herein, then, notwithstanding anything to the contrary stipulated by the customer, the conditions set forth herein shall prevail and be of full force and effect unless specifically varied in writing with specific reference to the customer's contrary documentation.

3. Remuneration

- 3.1 In the absence of any written agreement to the contrary, the remuneration payable to the carrier by the customer will be in accordance with the standard tariffs of the carrier, such which are subject to review by the carrier without prior notice to the customer.
- 3.2 The customer shall be liable for any duty, tax imposed, fine or outlay of whatsoever nature levied by the authorities at any port or place in connection with the goods and shall reimburse the carrier for any such amount disbursed or losses sustained by the carrier in connection therewith.
- 3.3 In the event of the carrier being obliged to take out or obtain any licenses or permits, or to comply with the requirements of any lawful authority, the carrier shall be entitled to levy an additional charge to cover any expenses resulting there from not already included in the carrier's standard tariffs.

- 3.4 In the event of the carrier being obliged to deviate from the route selected by it, or to carry the goods over another route, for any reason whatsoever, including but not limited to adverse weather conditions, impassable or dangerous roads, bridges, pontoons, and ferries or the instructions of any competent authority, the carrier shall be entitled to charge an additional remuneration in proportion to the resulting extra distance travelled.
- 3.5 "To Pay" consignments, (marked by the Customer for "Consignee's Account" on the face hereof) will be accepted by the Carrier provided the consignee has an approved ledger account with the Carrier and provided also that the Customer enters the consignee's approved account number into the Carrier's Waybill/Invoice at the time of handing the cargo to the Carrier prior to dispatch. In all other cases where "to Pay" consignments are required but where the consignee does NOT have an approved account, consignments are accepted and undertaken for "Customer's Account" only. Notwithstanding the aforesaid, the Customer remains liable for all consignment charges and other lawful expenses due to the Carrier, should the said charges and expenses not be recovered from the consignee within 30 days from the date of consignment, or should the consignee default payment for any reason whatsoever "COD" consignments will not be undertaken.

4. Payment of Remuneration

- 4.1 In the absence of any special provisions to the contrary, payment shall be effected by the customer within 30 days after the date of the carrier's invoice.
- 4.2 The carrier shall in its absolute discretion be entitled to appropriate all payments made by the customer towards the payment of any debt or obligation of whatsoever nature owing by the customer to the carrier, irrespective of when such debt or obligation arose.
- 4.3 Interest will accrue on all payments not made on due date at the maximum rate allowed by law from the due date for payment to the date on which payment is effected.
- 4.4 The customer may not raise any claim, dispute or counter-claim as a reason for deferring payment and the customer may not withhold any payment or set off any claim or counter-claim which it may wish to raise against the amount invoiced by the carrier.

5. Carrier's Lien

- 5.1 As security for all moneys (whether past or present) owing for the handling of goods, whether forming the subject matter of this agreement or otherwise, the carrier shall have a lien over all goods, documents, bills of lading import permits as well as all repayment, refunds, claims or recoveries in its possession or under its control.
- 5.2 In addition, the carrier shall be entitled to hold all goods as security for any other moneys which may be owing to it by the customer from any cause whatsoever.
- 5.3 Notwithstanding that credit may have originally been granted by the carrier to the customer, the carrier may at any time in its sole discretion retain possession of any goods pending the discharge of all the customer's indebtedness to the carrier, whether or not such indebtedness is related to the handling of the goods in question or not.
- 5.4 In the event of the carrier retaining possession of the goods in terms of clause 5.1 and/or 5.2 and/or clause 5.3, the carrier shall be entitled to store or warehouse the goods at such place as it deems fit, at the customer's expense.
- 5.5 If any moneys owing to the carrier are not paid by the customer within 30 days after they have become due, the carrier shall be entitled without further notice:
- 5.5.1 To open and examine the goods;
- 5.5.2 To sell the whole or any part of the goods, in such a manner and on such terms and conditions as it deems fit;
- 5.5.3 To apply the proceeds of any sale after deduction of all expenses thereof in payment or reduction of any amount due by the customer to the carrier (including the storage charges envisaged in clause 5.4) provided that any surplus shall be paid over to the customer without interest immediately after the sale, if the customer's address is known, and if not, upon demand made by the customer within 90 days of the sale.
- 5.6 The carrier shall not be liable for any loss, damage or deterioration of such goods attributable to the implementation of this clause.
- 5.7 The carrier's rights under this clause are not exhaustive and are in addition to any other rights which it may have against the customer.

6. Customer's Warranties

- The customer is bound by and warrants in favour of the carrier:
- 6.1 The accuracy of all descriptions, values and other particulars furnished to the carrier for customs, railage and other purposes. The customer indemnifies the carrier against all expenses, claims or fines arising from any inaccuracy or omission of descriptions, values or other particulars, (even if the inaccuracy or omission of descriptions, values or other particulars occurs without negligence);
- 6.2 That the carriage of the goods will not violate or infringe any Act, regulation or law and the customer hereby indemnifies and holds the carrier harmless against any claims and/or damages which the carrier may suffer by virtue of the customer's breach of this warranty;

- 6.3 That the goods are the customers sole property, alternatively, the customer is authorized by the person owning the goods to enter into this contract subject to these terms and conditions, and the customer hereby indemnifies the carrier against any claim of any nature made by the owner.
- 6.4 If the customer is not the owner of the goods, the customer warrants that the owner, sending or consignee is bound by these trading terms and conditions for itself and its agents and for any party on whose behalf it or its agents may act and in particular, but without prejudice to the generality of the foregoing, it accepts that the carrier shall have the right to enforce against them jointly and severally any liability of the customer under these trading terms and conditions or to recover from them any sums to be paid by the carrier which upon proper demand have not been paid.
- 6.5 All goods will be safely, properly, adequately and appropriately prepared, stowed, labelled and marked, having regard *inter alia* to the implementation by or on behalf of the carrier or at its instance of the contract involved, and the characteristics or dangers of the goods involved and are capable of withstanding the normal hazards inherent in the implementation of such contract and will not cause the death of, or injury to, or illness, of any person, nor cause any loss of, or damage to, any property; and the customer indemnifies the carriers against all claims, losses, penalties, damages, expenses and fines whatsoever, whensoever and howsoever arising as a result of a breach of the foregoing, whether negligently or otherwise.

7. Conditions of Goods

The onus of proving the quantity, type physical properties and composition and the condition of the goods and/or the condition of any container at the time of receipt thereof by the carrier shall at all times remain with the customer, and no delivery note, receipt or other document furnished or signed at such time by or on behalf of the carrier shall constitute conclusive proof thereof.

8. Dangerous Goods

- 8.1 Unless otherwise agreed in writing, the customer warrants that all goods handled are fit to be so handled in the ordinary way and are not dangerous.
- 8.2 Unless otherwise agreed in writing, the carrier will not handle any dangerous, corrosive, noxious, hazardous, inflammable or explosive goods or any goods which in its opinion are likely to cause damage.
- 8.3 The customer shall be liable for all losses or damage caused to the carrier and/or third parties by all goods handled and hereby indemnifies the carrier against any claims arising in connection therewith.
- 8.4 Should the carrier agree to handle any dangerous goods for any purpose:
- 8.4.1 The customer shall furnish with the goods a written declaration containing the trade name, chemical composition and characteristics of the goods; and
 - 8.4.2 Such declaration shall define the precise respects or circumstances in which the goods are dangerous; and
 - 8.4.3 The customer shall ensure that the goods bear the warning labels and declarations required in terms of the laws and regulations applicable to the transportation of dangerous goods.
- 8.5 If, in the opinion of the carrier any goods (whether they have been declared as dangerous or not) become a danger to any person or property, the carrier shall be entitled immediately and without notice to the customer to dispose of the goods in question or take such other steps as it in its sole discretion deems prudent to avert danger, in such event the carrier shall:
- 8.5.1 Not be liable under any circumstances for the value of the goods or for any other loss or damage whether direct or consequential sustained by the customer or owner as a result of such disposal or other steps; and
 - 8.5.2 Still be entitled to recover from the customer its remuneration for the handling of the goods together with any costs incurred by it in disposition of them or taking other steps.
- 8.6 Without prejudice to any of the carrier's rights and securities under these trading terms and conditions, the customer indemnifies and holds harmless the carrier against all liabilities, damages (including consequential damages), cost and expenses howsoever incurred or suffered by the carrier arising directly or indirectly from or in connection with the transport of dangerous goods.

9. Perishable Goods

- 9.1 Perishable goods which are not taken up immediately upon arrival at their destination or which are insufficiently marked or otherwise not identifiable may be disposed of without notice to the customer, and the payment or tender to the customer of the nett proceeds of any disposition (after deduction of all charges incurred by the carrier) shall be equivalent to delivery.
- 9.2 Taking into account the perishable nature of perishable goods, the carrier is indemnified in accordance with the provisions of Clause 12 with regards to any claims arising in the transport and storage of the goods.

10. Loading and off-loading

- 10.1 The customer shall ensure that:
- 10.1.1 The goods shall be ready for loading on the date specified;
 - 10.1.2 All documentation necessary in connection with the goods and the transportation thereof shall be fully and correctly prepared.

- 10.1.3 At all places where the carrier is to collect and off-load the goods there will be safe, suitable and adequate access and loading and off-loading facilities, and that it is possible for the carrier to do so by means of ordinary staircases, and/or doorways, without need for any special or additional tackle, plant power, labour or equipment;
 - 10.1.4 The goods will be sufficiently packed and prepared for carriage;
 - 10.1.5 The customer shall sign such certificates and receipts on loading and off-loading as the carrier may require.
- 10.2 The carrier shall not be under any obligation to provide any plant, power or labour which in addition to its vehicle's crew is required for the loading or off-loading of any goods. Any assistance given by the carrier in such loading or off-loading shall be at the sole risk of the customer.
- 10.3 Any customer (or owner) conducting any packing or other operation or activity in any area or premises provided by the carrier shall do so at its own risk, and the customer indemnifies the carrier against all claims or losses arising out of the presence of the customer in such area or premises.
- 10.4 The customer indemnifies the carrier against any losses that may be suffered as a result of inadequate offloading facilities.

11. Route

When carrying goods, the carrier shall in its sole discretion decide what route to follow.

12. Carriers liability for damage or loss

- 12.1 The goods shall at all stages be carried and/or stored in the warehouse of the carrier at the sole risk of the customer (or owner).
- 12.2 The customer hereby exempts the carrier from and indemnifies the carrier against all liability of whatsoever nature, arising directly or indirectly from the handling of the goods. This exemption and indemnity includes, but is not restricted to, any liability for direct and/or consequential loss or damages arising from loss or theft of the goods, damage to the goods, the failure to collect or deliver the goods timeously adequately or at all, or from or to the correct address, or from any other cause arising, whether any such liability, loss or damage is caused by or arises from breach of contract, negligence or gross negligence, on the part of the carrier, its servants, agents or employees, or otherwise.
- 12.3 The Carrier shall not in any circumstances be liable for any loss or damage whatsoever caused by the hazardous, perishable, fragile or brittle nature of goods, nor for mechanical derangement of the goods.
- 12.4 The Carrier shall not in any circumstances be liable for the scratching, cracking, denting, chipping, bruising or breakage or other loss or damage to inadequately packed goods handed to the Carrier for the consignee.
- 12.5 All occasions of loss, damage or non delivery of goods must be reported to the Carrier within 4 days from date of consignment and a report confirmed in writing within 14 days. If a claim is to be lodged, the fully documented claim must be submitted to the Carrier in writing within 30 days from date of consignment. Claims received by the Carrier after 30 days from the date of consignment will not be considered.
- 12.6 In no case shall the liability of the Carrier in any one consignment exceed the value of goods for which a claim has been made against the Carrier, or R150 00 (R75.00 in the case of glass, ceramics, pottery, and/or goods of a similar fragile or brittle nature) whichever is the lesser amount, whether the loss or damage suffered by the owner of the goods is caused by or due to the neglect or default of the Carrier or not.
- 12.7 The carrier will consider any claim instituted by the customer, without prejudice to the carrier's rights as agreed upon in these terms and conditions.

13. Insurance

- 13.1 It is the customer's responsibility to ensure that goods are at all material times insured against loss or damage to their full value on an all risks basis. Should the customer fail to obtain such insurance then the customer shall bear all risk of loss or damage to such goods, and the customer indemnifies the carrier accordingly.
- 13.2 Without prejudice to its rights as agreed to in these terms and conditions, the carrier will arrange Limited Goods in Transit Insurance (GIT Insurance) and the carrier will, but without any obligation to do so, and without giving any undertakings of whatsoever nature, endeavour to recover for the owner of the consigned goods any defined loss or damage suffered by the owner, subject to the exceptions and general conditions of the fire collision and overturning policy as stated by the insurer. A copy of the GIT is available from the carrier on request.
- 13.3 Any such insurance effected by the Carrier shall be subject to the usual exceptions and conditions of the policies of the insurer or underwriter taking the risk. The carrier shall not be under any obligation to effect a separate insurance on each consignment but may declare it on any open or general policy. Should the insurer dispute liability for any reason, the insured shall have recourse against the insurer only and the carrier shall not be under any liability in relation thereto. The carrier's liability at any time will be limited to what is paid out by the insurer.

14. Demurrage

The carrier shall not be liable for demurrage or storage charges of any nature whatsoever and howsoever arising. Where any such demurrage and/or storage charges are paid by the carrier, such charges shall be refunded to the carrier by the customer on demand. The customer hereby appoint the carrier irrevocably and in rem suam as its agent and in its name, place and stead, to contract for the storage of the goods upon such terms and conditions as the carrier may, in its sole discretion elect, and without any liability whatsoever attaching to the carrier to attend to such storage.

15. Subcontracting

- 15.1 The carrier reserves the right to employ subcontractors or agents, in the absolute discretion of the carrier, to act on its behalf. Where the carrier employs independent third parties to permit all or any of the functions required of the carrier, the carrier shall have no responsibility or liability to the customer for any acts or omissions of such third parties even although the carrier is suitably indemnified against all costs (including attorney and own client costs).
- 15.2 In the event of losses or damages caused by a subcontractor, the carrier shall take such action against the subcontractor on the customer's behalf as the customer may direct, the costs of which will be for the customer's account.

16. Acceptance of Delivery

If delivery of any goods is not accepted by the customer, consignee or party nominated by the customer at the appropriate time and place then, following notice by the company to the carrier, the carrier to the customer of the non-acceptance of delivery, the carrier shall be entitled to store the goods or any part thereof at no risk to the carrier and at the expense of the customer;

17. Warehousing

Pending forwarding and/or delivery by or on behalf of the carrier, goods may be warehoused in the carrier's warehouse or otherwise held at any place as determined by the carrier in its absolute discretion, at the customer's expense. Goods stored on behalf of the customer will at all stages be stored at the risk of the customer and the carrier accepts no liability for any direct or consequential losses arising from the warehousing or storage of the goods.

18 Carrier's discretion in the Absence of Instructions

- In the absence of specific instructions given timeously in writing by the customer to the carrier:
- 18.1 It shall be in the reasonable discretion of the carrier to decide at what time to perform or to produce the performance of any or all of the acts which may be necessary or requisite for the discharge of its obligations to the customer
- 18.2 The carrier shall have an absolute discretion to determine the means, route and procedure to be followed by it in performing all or any of the acts or services it has agreed to perform;
- 18.3 In all cases where there is a choice of tariff rates or premiums offered by any carrier, warehousemen, underwriter or other person depending upon the declared value of the relevant goods or the extent of the liability assumed by the carrier, warehousemen, Underwriter or other person, it shall be in the discretion of the carrier as to what declaration, if any, shall be made, and what liability, if any, shall be imposed on the carrier, warehousemen, underwriter or other person

19. Company's General Discretion

- 19.1 Notwithstanding anything to the contrary herein contained, if at any time the carrier should consider it to be in the customer's interest or for the public good to part from any of the customer's instructions, then the carrier shall be entitled to do so and shall not incur any liability in consequence of doing so
- 19.2 If events or circumstances come to the attention of the carrier, its agents servants or nominees which, in the opinion of the carrier, make it, in whole or in part, impossible or impracticable for the carrier to comply with a customer's instructions, the carrier shall take reasonable steps to inform such customer of such events or circumstances and to seek further instructions. If such further instructions are not timeously received by the carrier in writing, the carrier shall, at its sole discretion, be entitled to detain, return, store, sell, abandon or destroy all or part of the goods concerned at the risk and expense of the customer

20. Examination of the Goods

- 20.1 The carrier will not be responsible for examining or counting any goods received by it where such goods are bundled, palletized or packed in any manner such that their number cannot be quickly and easily counted. Should the company undertake to count goods so received, it shall incur no liability in respect of any error or inaccuracy in such counting, whether such error or inaccuracy is as a result of negligence on the part of the carrier or otherwise. The carrier shall be entitled to levy a charge on the customer for the counting of goods in such circumstances.
- 20.2 The carrier shall have the right, but shall not be obliged, to examine or cause to be examined, any goods, and to enquire into the correctness or sufficiency of information or documentation submitted in respect of such goods and the customer shall cooperate promptly and fully with such examination or enquiry.

21. Customer's Oral Instructions

The customer's instructions to the carrier shall be precise clear and comprehensive and in particular, but without limitation, shall cover any valuation or determination issued by customs in respect of any goods to be dealt with by or on behalf or at the request of the carrier. Instructions given by the customer shall be recognized by the carrier as valid only if timeously given specifically in relation to a particular matter in question. Oral instructions, standing or general instructions or instructions given late, even if received by the carrier without comment, shall not in any way be binding upon the carrier, but the carrier may act thereupon in the exercise of its absolute discretion.

22. Indemnity by the Customer

Without prejudice to any of the carrier's rights and securities under these trading terms and conditions, the Customer indemnifies and holds harmless the carrier against all liabilities, damages, costs and expenses whatsoever incurred or suffered by the carrier, arising directly or indirectly from or in connection with the customer's express or implied instructions or the implementation by or on behalf of or at the instance of the carrier in relation to any goods and in particular, but without limitation or the foregoing, in respect of any liability whatsoever which may be incurred:

- 22.1 To any haulier, carrier, warehousemen or any other person whatsoever at any time involved with such goods arising out of any claim made directly or indirectly against any such person by the customer or by any consignor, consignee or owner of such goods or by any person having an interest in such goods or by any other person whatsoever and/or;
- 22.2 To any owner or consignee of such goods who is not the customer of the carrier, where the carrier performs the service of a deconsolidation agent, or any other service; and/or
- 22.3 To any carrier of the goods if the company is the consignor or consignee of the goods.

23 Warranties and Representations by the Carrier

The carrier makes no warranties and representations to the customer, save as may be specifically provided herein or as notified in writing by the carrier to the customer from time to time. The customer acknowledges that the carrier is not in any way bound by any oral statement, representation, guarantee, promise, undertaking, inducement, or otherwise which may have been made at any time by any salesman, employee, representative or any person acting or purporting to act for or on behalf of the carrier, whether negligently or otherwise, unless such statements, representations, guarantees, promises, undertakings, warranties or inducements are supplied or made in writing by an employee duly authorised by written resolution of the board of directors of the carrier in response to a written enquiry specifying accurately and in complete detail what information is required.

24. Permits and Consents

If any permit, consent or approval to handle goods is required under any law, by-law or regulation, non of the carrier's obligations or duties shall take effect unless and until it obtains the relevant permit, consent or approval. The customer shall provide all assistance and information required by the carrier for the purpose of applying for or obtaining any such permit, consent or approval.

25. Delay – Police Instruction

The carrier shall not be liable for any delay occasioned by compliance with any instructions issued by the police or any other competent authority, but any extra costs incurred by the carrier as a result of compliance with any such instructions shall be added to its charges.

26. Sole Agreement

This agreement constitutes the sole record of the agreement "with the Carrier's Waybill" between the parties. The carrier shall not be bound by any express or implied term, representation, warranty, promise or the like not recorded herein.

27. Variation

No addition to, variation of or agreed cancellation of this agreement shall be of any force or effect unless recorded in writing and accepted by the carrier in writing.

28. Indulgence and Waiver

No relaxation or indulgence which the carrier may grant to the customer shall constitute a waiver of the rights of the carrier and shall not preclude the carrier from exercising any of its rights which may have arisen in the past or which might arise in the future.

29. Applicable Law

The proper law of this agreement is the law of the Republic of South Africa, and accordingly any dispute about this agreement, including any dispute about its validity, existence, interpretation, rectification,

breach or termination or any dispute about any matter arising out of this agreement, its avoidance, interpretation, rectification, breach or termination shall be determined according to the laws of the Republic of South Africa. In the event of the Company being compelled to institute legal proceedings against the Customer (sender or consignee) in order to recover its consignment charges and other lawful expense, then the Customer will be liable for all costs on an Attorney own Client scale and collection commission.

30. Domicilium and Notices

The Customer chooses its street address set out in the dispatch documentation as its domicilium citandi et executandi ("domicilium") for all purposes under this agreement, whether for serving any court process or document, giving any notice, or making any other communications of whatsoever nature and for any other purpose arising from this agreement, any notice required to be given by the carrier to the customer will be deemed to have been validly given if posted by registered post to the domicilium of the customer, alternatively e-mailed and a "read receipt" is obtained and will be deemed to have been received by the customer within 7 days of the date of posting.

DATE

SIGNATURE